SCHEME OF AMALGAMATION

(PURSUANT TO SECTIONS 233 OF THE COMPANIES ACT, 2013 AND RULES FRAMED THEREUNDER)

BETWEEN

ANAND POTATO COLD STORAGE PRIVATE LIMITED

(SUBSIDIARY AND TRANSFEROR COMPANY NO. 1)

AND

AWADH HEEMGHAR PRIVATE LIMITED

(SUBSIDIARY AND TRANSFEROR COMPANY NO. 2)

AND

WORTHWHILE TRADERS PRIVATE LIMITED

(SUBSIDIARY AND TRANSFEROR COMPANY NO. 3)

AND

NEMINATH VINIMAY LIMITED

(SUBSIDIARY AND TRANSFEROR COMPANY NO. 4)

WITH

RADHASHREE FINANCE LIMITED

(HOLDING AND TRANSFEREE COMPANY)

RADHASHREE FINANCE LIMITED
Director

ANAND POTATO COLD STORAGE PVT. LTD.
Director

AWADH HEEMGHAR PVT. LTD.
Director

WORTHWHILE TRADERS PVT. LTD.
Director

NEMINATH VINIMAY LIMITED
Director

PREAMBLE

A. AN OVERVIEW OF SCHEME OF AMALGAMATION

- This Scheme of Amalgamation is presented under the provisions of Section 233 of the Companies Act, 2013 read with Rule 25 of the Companies (Compromises, Arrangements & Amalgamations) Rules, 2016, as amended, under fast track route for amalgamation of "***wholly owned subsidiaries with holding company***". The Transferee Company namely M/s Radhashree Finance Limited is a holding company as defined under Section 2(46) in which all the Transferor Companies which are wholly owned subsidiaries as defined under section 2(87) of the Companies Act, 2013, namely M/s Anand Potato Cold Storage Private Limited ('Transferor Company No. 1'), M/s Worthwhile Traders Private Limited ('Transferor Company No. 2'), M/s Awadh Heemghar Private Limited ('Transferor Company No. 3') and Neminath Vinimay Limited ('Transferor Company No. 4') shall be amalgamated..

- The Transferor Companies, being the wholly owned subsidiaries, are being amalgamated with the Transferee Company, being the holding company, and in consideration Transferee Company will not issue any new shares to the shareholders of Transferor Companies as per the Scheme of Amalgamation since all the shares of Subsidiary Companies are held by Holding Company.

- In addition, this Scheme of Amalgamation also provides for various others matter consequential or otherwise integrally connected herewith.

B. The amalgamation of the Transferor Companies with the Transferee Company, pursuant to and in accordance with this Scheme, under Sections 233 and other relevant provisions of the Companies Act, 2013, shall take place with effect from the Appointed Date and shall be in compliance with Section 2(1B) of the Income Tax Act, 1961.

RADHASHREE FINANCE LIMITED
Director

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Director

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Director

NEMINATH VINIMAY LIMITED
Director

PART-I

(PRELIMINARY)

DEFINITIONS:

In this Scheme, unless inconsistent with the meaning or context thereof, the following expressions shall have the following meanings:

i. "**Act**" means the Companies Act, 2013.

ii. "**Appointed Date**" means the 1st day of April, 2025.

It is hereby stated that at filing of the application before the Hon'ble Regional Director, the appointed date may be beyond a year, as the consideration and approval of the scheme by the Board of Directors of Transferee Company and Transferor Companies and other consents / approvals from the stakeholders and necessary compliances has taken time. However, even if the appointed date is beyond a year from the date of filing, the Scheme is not against the public interest.

iii. **"Central Government"** means the Government of India and vide Notification No. S.O. 4090(E) dated 19th December, 2016, the Central Government has delegated powers vested in it under Section 233 of the Companies Act, 2013 to the Regional Director, Ministry of Corporate Affairs having jurisdiction.

iv. **"Regional Director"** means the Regional Director (Eastern Region), Ministry of Corporate Affairs at Kolkata, having jurisdiction over the Transferor Company and the Transferee Company.

v. **"Registrar of Companies" or "ROC"** means the Registrar of Companies, West Bengal, at Kolkata.

vi. "**Effective Date**" means the date on which the certified copies of the Order(s) of the Regional Director (Central Government) / National Company Law Tribunal ("NCLT"), Kolkata or other competent authorities, vesting the assets, properties, liabilities, rights, duties, obligation, and the like of the Transferor Company in the Transferee Company is filed with the Registrar of Companies, West Bengal, after obtaining the necessary consents, approvals, permission, resolutions, agreement, sanction and order in this regards.

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NEMINATH VINIMAY LIMITED
Director

vii. "**Scheme**" means this Scheme of Amalgamation of the Transferor Company with the Transferee Company in its present form or with such modifications as sanctioned by the Regional Director, Eastern Region.

viii. "**Transferee Company**" means Radhashree Finance Limited, Company incorporated on 30th day of October, 1975 under the provisions of the Companies Act, 1956 (CIN: L15491WB1975PLC030290) which was originally incorporated as Panorama Trading and Plantation Limited, the name was subsequently changed to panorama Capital Market Limited on 16th October 1995 and thereafter changed to Radhashree Finance Limited in the Year 2015 an whose equity shares are listed on Calcutta stock exchange and having its Registered Office at 2 Hare Street, 5th Floor, Kolkata – 700001 in the State of West Bengal (hereinafter referred to as "The Transferee Company" or "The Amalgamated Company") and having PAN **AABCP9588J**.

The Transferee Company is presently engaged in Business of Non-Banking Finance Companies. The shares of the Transferee Company are listed in Calcutta Stock Exchange. Shareholding Pattern of the Company is annexed Separately. The Company's Memorandum and Article of Association authorizes to Merge/Amalgamate with any other Company vide Clause No. III B 35.

ix. **Transferor Company No. 1**' means Anand Potato Cold Storage Private Limited, Company incorporated on 28th Day of April, 2008 under the provisions of the Companies Act, 1956 (CIN: U63023WB2008PTC125223) and having its Registered Office at 77, Netaji Subhas Road 3rd Floor, Room No. 303, Kolkata - 700001 in the State of West Bengal, and having PAN **AAHCA5191N**.

The Transferor Company No. 1 is presently engaged in the business of building, construct storage or warehouse. The shares of the Transferor Company No. 1 is not listed in any stock exchange. Shareholding Pattern of the Company is annexed Separately. The Company's Memorandum and Article of Association authorizes to Merge/Amalgamate with any other Company vide Clause No. III B 20.

x. **'Transferor Company No. 2'** means Awadh Heemghar Private Limited, company incorporated on 29th Day of October, 2007 under the provisions of the Companies Act, 1956 (CIN: U45400WB2007PTC120117) and having its Registered Office at 77,

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Director

NEMINATH VINIMAY LIMITED
Director

Netaji Subhas Road 3rd Floor, Room No. 303, Kolkata - 700001 in the State of West Bengal, and having **PAN AAGCA6238D**.

The Transferor Company No. 2 is presently engaged in business of Real estate. The shares of the Transferor Company No. 2 are not listed in any stock exchange. Shareholding Pattern of the Company is annexed Separately. The Company's Memorandum and Article of Association authorizes to Merge/Amalgamate with any other Company vide Clause No. III B 20.

xi. **'Transferor Company No. 3'** means Worthwhile Traders Private Limited, company incorporated on 26th Day of March, 1996 under the provisions of the Companies Act, 1956 (CIN: U51109WB1996PTC078479) and having its Registered Office at 77, Netaji Subhas Road 3rd Floor, Room No. 303, Kolkata - 700001 in the State of West Bengal, and having **PAN AAACW4261E**.

The Transferor Company No. 3 is presently engaged in trading Business. The shares of the Transferor Company No. 3 are not listed in any stock exchange. Shareholding Pattern of the Company is annexed Separately. The Company's Memorandum and Article of Association authorizes to Merge/Amalgamate with any other Company vide Clause No. III B 9.

xii. **'Transferor Company No. 4'** means Neminath Vinimay Limited, company incorporated on 17th Day of October, 2012 under the provisions of the Companies Act, 1956 (CIN: U51909WB2012PLC187346) and having its Registered Office at 77, Netaji Subhas Road 3rd Floor, Room No. 303, Kolkata - 700001 in the State of West Bengal, and having **PAN AAECN2852L**.

The Transferor Company No. 4 is presently engaged in trading Business. The shares of the Transferor Company No. 4 are not listed in any stock exchange. Shareholding Pattern of the Company is annexed Separately. The Company's Memorandum and Article of Association authorizes to Merge/Amalgamate with any other Company vide Clause No. III B 46.

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Director

NEMINATH VINIMAY LIMITED
Director

xiii. **"Transferor Companies"** means and collectively referred to 'Transferor Company No. 1' 'Transferor Company 2' 'Transferor Company 3' and 'Transferor Company 4'.

xiv. **"Undertaking of the Transferor Companies"** means and includes:

(i) All the properties, assets, rights and powers of the Transferor Companies; and

(ii) Without prejudice to the generality of the foregoing clause the said Undertaking shall include all rights, powers, interests, authorities, privileges, liberties and all properties and assets, real or personal, corporeal or incorporeal, in possession or reversion, present or contingent of whatsoever nature and wherever situate including all lands, buildings, plant and machinery, office equipments, inventories, investments in shares, debentures, bonds and other securities, sundry debtors, cash and bank balances, loans and advances, leases and all other interests and rights in or arising out of such property together with all liberties, easements, advantages, exemptions, approvals, licenses, trade marks, patents, copyrights, import entitlements and other quotas, if any, held, applied for or as may be obtained hereafter by the Transferor Companies or which the Transferor Companies are entitled to together with the benefit of all respective contracts and engagements and all respective books, papers, documents and records of the Transferor Companies.

(iii) All debts, liabilities, duties, provisions for taxations and others and obligations of the Transferor Companies of whatsoever nature.

xv. **"Rules"** includes rules, circulars and notifications in force and issued from time to time under the provisions of the Companies Act, 2013, and any statutory modification or re-enactments thereof, unless stated otherwise.

xvi. Word(s) and expression(s) elsewhere defined in the Scheme will have the meaning(s) respectively ascribed thereto.

1. SHARE CAPITAL

The Authorised, Issued, Subscribed and Paid-up Share Capital of the Transferor Companies and the Transferee Company as on the date of

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Director

NEMINATH VINIMAY LIMITED
Director

the meetings of the Board of Directors of the said Companies considering and approving this Scheme, i.e. as on 30.01.2026 is as under:

A. TRANSFEREE COMPANY

Particulars	No. of Shares	FV (Rs.)	Amount (Rs.)
Authorised Share Capital			
Equity Shares	12634000	10	126340000
Preference Shares	600	100	60,000
Issued, Subscribed and fully paid-up Share Capital			
Equity Shares	31,09,408	10	3,10,94,080
Preference Shares	500	100	50,000

The Transferee Company Company is a Holding company as per Section 2(46) of the Companies Act, 2013.

B. TRANSFEROR COMPANY NO.1

Particulars	No. of Shares	FV (Rs.)	Amount (Rs.)
Authorised Share Capital			
Equity Shares	76,000	100	76,00,000
Issued, Subscribed and fully paid-up Share Capital			
Equity Shares	75,150	100	75,15,000

The Transferor Company No. 1 is a subsidiary company as per Section 2(87) of the Companies Act, 2013.

C. TRANSFEROR COMPANY NO.2

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Director

NEMINATH VINIMAY LIMITED
Director

Particulars	No. of Shares	FV (Rs.)	Amount (Rs.)
Authorised Share Capital			
Equity Shares	25,000	100	25,00,000
Issued, Subscribed and fully paid-up Share Capital			
Equity Shares	24,590	100	24,59,000

The Transferor Company No. 2 is a subsidiary company as per Section 2(87) of the Companies Act, 2013.

D. TRANSFEROR COMPANY NO.3

Particulars	No. of Shares	FV (Rs.)	Amount (Rs.)
Authorised Share Capital			
Equity Shares	3,00,000	10	30,00,000
Issued, Subscribed and fully paid-up Share Capital			
Equity Shares	2,80,500	10	28,05,000

The Transferor Company No. 3 is a subsidiary company as per Section 2(87) of the Companies Act, 2013.

E. TRANSFEROR COMPANY NO.4

Particulars	No. of Shares	FV (Rs.)	Amount (Rs.)
Authorised Share Capital			
Equity Shares	50,000	10	5,00,000
Issued, Subscribed and fully paid-up Share Capital			
Equity Shares	50,000	10	5,00,000

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Director

NEMINATH VINIMAY LIMITED
Director

The Transferor Company No. 4 is a subsidiary company as per Section 2(87) of the Companies Act, 2013.

Subsequent to the above date, there is no change in the capital structure of the Transferor Companies and the Transferee Company till the date of filing this scheme.

2. DATE OF TAKING EFFECT AND OPERATIVE DATE

The Scheme set out herein in its present form or with any modifications approved or imposed or directed by the Central Government (Regional Director) shall be operative from the Appointed Date but shall be effective from the Effective Date.

3. OBJECTS AND REASONS:

- In order to consolidate financial resources at one place, simplify shareholding structure and effectively manage the Transferor Companies and Transferee Company as a single entity, which will provide several benefits including consolidating financial resources, simplifying shareholding structure, streamlined group structure by reducing the number of legal entities, more effective and centralized management of funds, reducing the multiplicity of legal and regulatory compliances, it is intended that the Transferor Companies be amalgamated with Transferee Company.

- The independent operations of the Transferor Companies and Transferee Company leads to incurrence of significant costs and the amalgamation would enable economies of scale by attaining critical mass and achieving cost saving. The amalgamation will thus reduce managerial overlaps, which are necessarily involved in running multiple entities and also prevent cost duplication that can erode financial efficiencies of a group and the resultant operations would be substantially cost-efficient. This Scheme would result in simplified corporate structure of the Transferee Company and its businesses, thereby leading to more efficient utilization of capital and creation of a consolidated base for future growth of the Transferee Company.

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Director

NEMINATH VINIMAY LIMITED
Director

- The amalgamation will enable further expansion of the Transferee Company and provide a strong and focused base to undertake the business more advantageously. Further, this arrangement would bring concentrated management focus, integration, streamlining of the management structure, seamless implementation of policy changes and shall also help enhance the efficiency and control of the Transferor Companies and Transferee Company as both the companies are under the same management.

- The synergies created by scheme of amalgamation would increase operational efficiency and integrate business functions.

- The proposed Amalgamation will provide greater integration and flexibility to the Transferee Company and strengthen its position in the industry, in terms of the asset base, revenues, product and service range.

- The other benefits the proposed amalgamation include:

  (a) Optimum and efficient utilization and rationalization of capital, resources, assets and facilities;

  (b) Simplify shareholding structure

  (c) Enhancement of competitive strengths including financial resources;

  (d) Obtaining synergy benefits;

  (e) Better management and focus on growing the business;

  (f) Reduction of overheads, administrative, managerial and other expenditure.

In view of the above, it is considered desirable and expedient to amalgamate the Transferor Companies with the Transferee Company in accordance with this Scheme, pursuant to Sections 233 of the Companies Act, 2013.

RADHASHREE FINANCE LIMITED
Director

WORTHWHILE TRADERS PVT. LTD.
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NEMINATH VINIMAY LIMITED
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ANAND POTATO COLD STORAGE PVT. LTD.
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AWADH HEEMGHAR PVT. LTD.
Director

PART-II

(The Scheme)

1. TRANSFER OF UNDERTAKING:

1.1 With effect from the Appointed Date, the Transferor Companies shall stand amalgamated with the Transferee Company, as provided in the Scheme. Accordingly, the Undertaking of the Transferor Companies shall, pursuant to the provisions contained in Section 233 and other applicable provisions of the Act and subject to the provisions of the Scheme in relation to the mode and manner of vesting, stand transferred to and vest in or be deemed to be transferred to and vested in the Transferee Company, as a going concern without any further act, deed, matter or thing (save as provided below) so as to become on and from the Appointed Date the Undertaking of the Transferee Company.

1.2 It is expressly provided that in respect of the assets of the Transferor Companies as are movable in nature or otherwise capable of being transferred by manual delivery or by endorsement and delivery, the same shall be so transferred by the Transferor Companies and shall become the property of the Transferee Company accordingly without requiring any deed or instrument of conveyance for the same.

1.3 In respect of the assets of the Transferor Companies other than those referred to in Clause 1.2 above, the same shall, be transferred to and vested in and/or be deemed to be transferred to and vested in the Transferee Company pursuant to an order passed under the provisions of Section 233 of the Act.

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Director

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Director

RADHANATH VINIMAY LIMITED
Director

1.4 All debts, liabilities, duties and obligations of the Transferor Companies shall be transferred to the Transferee Company, without any further act or deed, pursuant to an order passed under the provisions of Section 233 of the Act, so as to become the debts, liabilities, duties and obligations of the Transferee Company.

1.5 The transfer of the Undertaking of the Transferor Companies, as aforesaid, shall be subject to the existing charges, if any, over or in respect of any of the assets or any part thereof.

1.6 Subject to the other provisions of this Scheme, all licenses, permissions, approvals, consents, registrations, eligibility certificates, fiscal incentives and no-objection certificates obtained by the Transferor Companies for their operations and/or to which the Transferor Companies are entitled to in terms of the various Statutes and / or Schemes of Union and State Governments, shall be available to the Transferee Company, without any further act or deed and shall be appropriately mutated by the statutory authorities concerned therewith in favour of the Transferee Company. Since the Undertaking of the Transferor Companies will be transferred to the Transferee Company as a going concern without any break or interruption in the operations thereof, the Transferee Company shall be entitled to the benefit of all such licenses, permissions, approvals, consents, registrations, eligibility certificates, fiscal incentives and no-objection certificates and to carry on and continue the operations of the Undertaking of the Transferor Companies on the basis of the same upon this Scheme becoming effective.

1.7 Upon the Scheme becoming effective, all benefits to which the Transferor Companies are entitled in terms of the various Statutes and / or Schemes of Union and State Governments, including credit for MAT, Advance tax and tax deducted at source and other benefits under Income Tax Act and tax credits and benefits relating to Excise (including Modvat/Cenvat), Sales Tax, Service Tax, GST, etc. shall be available to the Transferee Company. The Transferor Companies and the Transferee Company shall be entitled, whenever necessary and pursuant to the provisions of this Scheme, to file or revise their financial statements, tax returns, tax deduction at source certificates, tax deduction at source returns, and other statutory returns and shall have the right to claim refunds, advance tax credits, credit for Minimum Alternate Tax, carry forward of losses and unabsorbed

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depreciation, deductions, tax holiday benefits, deductions or any other credits and/or set off of all amounts paid by the Transferor Companies under the relevant laws relating to Income Tax, Value Added Tax, Service Tax, Central Sales Tax, Goods and Service Tax or any other tax as may be required consequent to the implementation of this Scheme.

1.8 Any refund under the Tax Laws due to Transferor Companies consequent to the assessments made on Transferor Companies and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by the Transferee Company.

1.9 For the removal of doubts, it is clarified that to the extent that the inter-company loans, deposits, obligations, balances or other outstandings, as may be between the Transferor Companies and the Transferee Company, the obligations in respect thereof shall come to an end and there shall be no liability in that behalf and corresponding effect shall be given in the books of account and records of the Transferee Company for the reduction of such assets or liabilities as the case may be and there would be no accrual of interest or any other charges in respect of such inter-company loans, deposits or balances, with effect from the Appointed Date.

2. ENCUMBRANCES

i. The transfer and vesting of the assets comprised the Undertaking to and in the **TRANSFEREE COMPANY** under Paragraph 1 of Part II of this Scheme shall be subject to the mortgages and charges, if any, affecting the same, as and to the extent hereinafter provided.

ii. All the existing securities, mortgages, charges, Encumbrances or liens (the "Encumbrances"), if any, as on the Appointed Date and created by the **TRANSFEROR COMPANIES** after the Appointed

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Director

Date, over the assets comprised in the Undertaking or any part thereof transferred to the **TRANSFEREE COMPANY** by virtue of this Scheme and in so far as such Encumbrances secure or relate to liabilities of the **TRANSFEROR COMPANIES**, the same shall, after the Effective Date, continue to relate and attach to such assets or any part thereof to which they are related or attached prior to the Effective Date and as are transferred to the **TRANSFEREE COMPANY**, and such Encumbrances shall not relate or attach to any of the other assets of the **TRANSFEREE COMPANY**, provided however that no encumbrances shall have been created by the **TRANSFEROR COMPANY** over its assets after the Appointed Date without the consent of the **TRANSFEREE COMPANY** as provided for In this Scheme.

iii. The existing encumbrances over the assets and properties of the **TRANSFEREE COMPANY** or any part thereof which relate to the liabilities and obligations of the **TRANSFEREE COMPANY** prior to the Effective Date shall continue to relate only to such assets and properties and shall not extend or attach to any of the assets and properties of the Undertaking transferred to and vested in the **TRANSFEREE COMPANY** by virtue of this Scheme.

iv. Any reference In any security documents or arrangements (to which the **TRANSFEROR COMPANIES** is a party) to the **TRANSFEROR COMPANIES** and Its assets and properties, shall be construed as a reference to the **TRANSFEREE COMPANY** and the

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assets and properties of the **TRANSFEROR COMPANIES** transferred to the **TRANSFEREE COMPANY** by virtue of this Scheme. Without prejudice to tire foregoing provisions, the **TRANSFEROR COMPANIES** and the **TRANSFEREE COMPANY** may execute any instruments or documents or do all the acts and deeds as may be considered appropriate, including the filing of necessary particulars and/or modification(s) of charge(s), with the Registrar of Companies to give formal effect to the above provisions, if required.

(v) Upon the coming into effect of this Scheme, the **TRANSFEREE COMPANY** alone shall be liable to perform all obligations In respect of the Liabilities, which have been transferred to it in terms of the Scheme.

(vi) It is expressly provided that, no other term or condition of the Liabilities transferred to the **TRANSFEREE COMPANY** is modified by virtue of this Scheme except to the extent that such amendment is required statutorily or by necessary implication.

(vii) The provisions of Paragraph 1 of Part II shall operate in accordance with the terms of the Scheme, notwithstanding anything to the contrary contained in any Instrument, deed or writing or the terms of sanction or issue or any security document; all of which instruments, deeds or writings shall be deemed to stand modified and/or superseded by the foregoing provisions.

3. INTER - SE TRANSACTIONS:

RADHASHREE FINANCE LIMITED
Director

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Director

With effect from Appointed Date, all inter-party transaction between the Transferor Companies and the Transferee Company and the Transferor Companies inter-se shall be considered as intra-party transactions for all purposes.

4. LEGAL PROCEEDINGS:

If any suits, actions and proceedings of whatsoever nature (hereinafter called "the Proceedings") by or against the Transferor Companies is pending on the Effective Date, the same shall not abate or be discontinued nor be in any way prejudicially affected by reason of the amalgamation of the Transferor Companies with the Transferee Company or anything contained in the Scheme, but the Proceedings may be continued and enforced by or against the Transferee Company as effectually and in the same manner and to the same extent as the same would or might have continued and enforced by or against the Transferor Companies, in the absence of the Scheme.

5. CONTRACTS AND DEEDS:

Subject to other provisions of this Scheme, all contracts, deeds, bonds, agreements, arrangements, engagements and other instruments of whatsoever nature to which the Transferor Companies is a party or to the benefit of which the Transferor Companies may be eligible, and which have not lapsed and are subsisting on the Effective Date, shall remain in full force and effect against or in favour of the Transferee Company as the case may be, and may be enforced by or against the Transferee Company

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as fully and effectually as if, instead of the Transferor Companies, the Transferee Company had been a party or beneficiary thereto.

6. SAVING OF CONCLUDED TRANSACTIONS:

The transfer of the Undertaking of the Transferor Companies under Clause 4 above, the continuance of Proceedings under Clause 5 above and the effectiveness of contracts and deeds under Clause 6 above, shall not affect any transaction or proceedings already concluded by the Transferor Companies on or before the Effective Date, to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Companies in respect thereto, as if done and executed on its behalf.

7. CONDUCT OF BUSINESS:

a) With effect from the Appointed Date and up to and including the Effective Date:

(I) The Transferor Companies shall carry on and shall be deemed to have carried on all its business and activities as hitherto and shall hold and stand possessed of and shall be deemed to have held and stood possessed of the Undertaking on account of, and for the benefit of and in trust for, the Transferee Company.

(II) All the profits or income accruing or arising the Transferor Companies, and all expenditure or losses arising or incurred (including all taxes, if any, paid or accruing in respect of any profits and income) by the Transferor Companies shall, for all

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purposes, be treated and be deemed to be and accrue as the profits or income or as the case may be, expenditure or losses (including taxes) of the Transferee Company.

(III) Any or the rights, powers, authorities and privileges attached or related or pertaining to and exercised by or available to the Transferor Companies shall be deemed to have been exercised by the Transferor Companies for and on behalf of and as agent for the Transferee Company. Similarly, any of the obligations', duties and commitments attached, related or pertaining to the undertaking that have been undertaken or discharged by the Transferor Companies shall be deemed to have been undertaken or discharged far and on behalf of and as agent for the Transferee Company.

b) With effect from the date or filing of this Scheme with the Central Government, Regional Director, Eastern Region, Ministry of Corporate Affairs and up to and including the Effective Date the Transferor Companies shall preserve and carry on their business and activities with reasonable diligence and business prudence and shall not undertake any additional financial commitments of any nature whatsoever, borrow any amounts nor any other liabilities or expenditure, issue any additional guarantees, indemnities, letters of comfort or commitments either for itself or on behalf of the group companies or any third party or sell, transfer, alienate, charge,

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mortgage or encumber or deal with the Undertaking or any part thereof save and except in each case in the following circumstances;

(i) If the same is in its ordinary course of business as carried on by it as on the date of filing this scheme with the Regional Director, Eastern Region Kolkata, Ministry of Corporate Affairs; or

(ii) if the same is permitted by this Scheme; or

(iii) If consent of the Board of Directors of the Transferee Company has been obtained.

c) The Transferor Companies shall not take, enter into, perform or undertake, as applicable (i) any material decision in relation to its business and operations (ii) any agreement or transaction; and (iii) such other matters as the Transferee Company may notify from time to time save and except in each case in the following circumstances:

(i) if the same is in its ordinary course of business as carried on by it as on the date of filing this Scheme with the Central Government, Regional Director, Eastern Region, Ministry of Corporate Affairs.

(ii) If the same is permitted by this Scheme; or

(iii) If consent of the Board of Directors of the Transferee Company has been obtained.

(d) Without prejudice to the generality of Clause (c) above, the Transferor Companies shall not make any change In Its capital structure, whether by way of increase (by issue of equity shares on a rights basis,

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bonus shares) decrease, reduction, reclassification, sub - division or consolidation, re-organization, or in any other manner except by way of making calls on partly paid shares to make them as fully paid, which may, in any way, affect the Share Exchange Ratio (as provided in paragraph 10 of Part II below), except under any of the following circumstances:

a) by mutual consent of the Board of Directors of the Transferor Companies and of the Transferee Company; or

b) As may be permitted under this Scheme.

8. TREATMENT OF TAXES:

a) Any tax liabilities under the Income-tax Act, 1961, service tax/GST, stamp Acts/laws or other applicable 1aws/ regulations (hereinafter In this Clause referred toas "Tax Laws") dealing with taxes/ duties/ levies allocable or related to the business of the Transferor Companies to the extent not provided for or covered by tax provision in the accounts made as on the date immediately preceding the Appointed Date shall be transferred to the Transferee Company.

b) All taxes (including income tax, service tax/GST, etc.) paid or payable by the Transferor Companies in respect of the operations and/or the profits of the business on and from the Appointed Date, shall be on account of the Transferee Company and, insofar as it relates to the tax payment (including without limitation income tax, service tax/GST, etc.), whether by way of deduction at source, advance tax

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or otherwise howsoever, by the Transferor Companies in respect of the profits or activities or operation of the business on and from the Appointed Date, the same shall be deemed to be the corresponding item paid by the Transferee Company, and shall, in all proceedings, be dealt with accordingly.

c) Any refund under the Tax Laws due to the Transferor Companies consequent to the assessments made on the Transferor Companies and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by the Transferee Company.

d) Without prejudice to the generality of the above, all benefits including that of withholding tax TDS under the income tax, service tax/GST, etc., to which the Transferor Companies is entitled to In terms of the applicable Tax Laws shall be available to and vest in the Transferee Company.

9. EMPLOYEES

Upon the coming into effect of this Scheme:

All the permanent employees of the Transferor Companies who are in employment as on the Effective Date shall become the permanent employees of the TRANSFEREE COMPANY with effect from tire Effective Date without any break or interruption in service and on terms and conditions as to employment and remuneration not less favorable than those on which they are engaged or employed try the

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Transferor Companies. It is clarified that the employees of the Transferor Companies who become employees of the Transferee Company by virtue of this Scheme, shell not be entitled to the employment policies and shall not be entitled to avail of any schemes and benefits that may be applicable and available to any of the employees of the Transferee Company unless otherwise determined by the Board of Directors of the Transferee Company. After the Effective Date, the Transferee Company shell be entitled to vary the terms and conditions as to employment and remuneration of the employees of the Transferor Companies on the same basis as it may do for the employees of the Transferee Company.

10. CONSIDERATION:

a) Upon the Scheme being sanctioned and coming into effect, no new shares will be issued and allotted for and against the equity shares of the Transferor Companies since all the shares of Transferor Companies, being the wholly owned subsidiaries, are held by Transferee Company, being the holding company. The Issued Capital of Transferor Companies shall stand cancelled.

b) Upon this Scheme becoming effective, all the equity shares held, inter-se, between the Transferor Companies and the Transferee Company shall stand cancelled without any further application, act or deed..

c)

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c) All other Rights attached to equity shares held by the Shareholders of the Transferor Companies shall stand extinguished upon this Scheme becoming effective.

d) **AMENDMENT TO MEMORANDUM OF ASSOCIATION AND ARTICLES OF ASSOCIATION OF THE TRANSFEREE COMPANY**

Increase in authorised share capital of the Transferee Company

(i) Upon the Scheme coming into effect, the authorized share capital of the Transferor Company be added to that of the Transferee Company, and the Memorandum of Association of the Transferee Company (clause relating to the authorized share capital) shall, without any further act or deed, be and stand altered, modified and amended, pursuant to provisions of Section 233 and all other applicable provisions, if any, of the Act read with Relevant Rules, Sections 13 and 61 of the Companies Act, 2013 and other applicable provisions of the Act, as the case may be, and for this purpose fees paid on the authorized capital by the Transferor Company shall be set-off against the fees payable by the Transferee Company on its enhanced authorised capital and if not required, the Transferee Company may enhanced its authorized capital to the extent to which after the set-off of the fees paid by the Transferor Company, the additional fees payable by the Transferee Company is nil. However, if the Authorised Capital is enhanced to an amount by which after set-off of fees paid by the Transferor Company on enhanced authorized share capital, additional fee is payable by the Transferee Company, then it will be paid as per provisions of Section 233 (11) of the Act read with Relevant Rules.

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(ii) It is further clarified that for the purpose of clause above (i), the consent of the shareholders of the Transferee Company and the confirmation and/or the Order of the Central Government sanctioning this Scheme, shall be deemed to be sufficient for the purpose of effecting this amendment, and no further Resolution under Sections 13 and 61 of the Companies Act, 2013 or other applicable provisions of the Act will require to be separately passed or filings required to be separately made with any Regulatory Authority. However, the Transferee Company shall file the amended copy of the Memorandum of Association and the Articles of Association along with the application with the Registrar of Companies, West Bengal in appropriate E-forms.

(iii) All contracts, deeds, agreements and other instruments of whatsoever nature between Transferor Company inter-se or with the Transferee Company shall stand cancelled.

11. ACCOUNTING TREATMENT:

a) Upon the Scheme becoming effective and with effect from the Appointed Date, for the purpose of accounting for and sealing with the value of the assets and liabilities in the books of the Transferee Company, the Transferee Company shall record all the assets and liabilities including reserves of the Transferor Companies transferred to and vested in the Transferee Company pursuant to this Scheme, in accordance with "Pooling of Interest Method" at their respective book values as appearing in the books of the Transferor Companies.

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b) After giving affects to clause **(a)** above, the difference between the value of Equity shares cancelled by the Transferee Company and Assets and Liabilities vested in the Transferee Company shall be credited to Capital Reserve Account in the books of the Transferee Company.

c) Upon coming into effect of this Scheme, to the extent that there are inter-corporate loans or balances between the Transferor Companies and the Transferee Company, the obligations in respect thereof shall come to an end and corresponding effect shall be given in the books of accounts and records of the Transferor Companies and the Transferee Company for the reduction of any assets or liabilities, as the case may be.

d) In order to ensure that consistent Accounting Policies of the Transferee Company are reflected in the financial statements, differences, if any, in the Accounting Policies between the Transferor Companies and the Transferee Company, shall be ascertained and the impact of the same till the Amalgamation will be quantified and adjusted in the reserves of the Transferee Company.

Subject to provisions of this Scheme, the Transferee Company shall abide

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by Indian Accounting Standard -103 Issued by The Institute of the Chartered Accountants of India (ICAI) and as per Section 133 of the Act and all entries shall be passes as per IND AS-103 in the Books of the Transferee Company.

12. DISOLUTION OF THE TRANSFEROR COMPANIES

On the coming into effect of this Scheme, the Transferor Companies shall stand dissolved without winding-up, and the Board of Directors and any committees thereof of the Transferor Companies shall without any further act, instrument or deed be and stand dissolved.

13. VALIDITY OF EXISTING RESOLUTIONS, ETC.

Upon the coming into effect of this: Scheme, the resolutions, if any, of the Transferor Companies, which are valid and subsisting on the Effective Date, shall continue to be valid and subsisting and be considered as resolutions of the Transferee Company and if any such resolutions have any monetary limits approved under the provisions of the Act, or any other applicable statutory provisions, then the said limits shall be added to the limits, if any, undertake resolutions passed by the Transferee Company and shall constitute the aggregate of the said limits in the Transferee Company.

14. MODIFICATION OF SCHEME

(I) The Board of Directors of the Transferor Companies and the Transferee Company or any person authorized by them may assent on behalf of all concerned to any modification to this

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Scheme of Amalgamation or to any condition which the "THE CENTRAL GOVERNMENT" or any other authorities may impose. The Transferor Companies and the Transferee Company by their respective Boards of Directors are authorized to do and execute, all acts, deeds, matters and things necessary for bringing this Scheme into effect, or review the position relating to the Satisfaction of the conditions of this Scheme and if necessary, waive any of such conditions (to the extent permissible in law) for bringing this scheme into effect, and/or give such consents as may be required in terms of this Scheme. In the event that any conditions are imposed by the Central Government, Regional Director, Eastern Region, Ministry of Corporate Affairs any Governmental Authorities, which the Board of Directors of the Transferor Companies or the Transferee Company find unacceptable for any reason, then the Transferor Companies and the Transferee Company shall be at liberty to withdraw the Scheme.

(II) For the purpose of giving effect to this Scheme or to any modification(s) thereof or additions thereto, the Board of Directors of the Transferor Companies and Transferee Company may give and are authorized to determine and give all such directions as are necessary for settling or removing any question of doubt or difficulty that May arise under this scheme or in regard to the meaning or interpretation of any provision of this

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Scheme or implementation thereof or in any matter whatsoever connected therewith (including any question or difficulty arising in connection with any deceased or insolvent shareholders or depositors, if any, of the Transferor Companies) or to review the position relating to the satisfaction of various conditions of this scheme and if necessary, to waive any such conditions (to the extent permissible in law) and such determination or directions or Waiver, as the case may be, shall be binding on all parties, In the same manner as if the same were specifically incorporated in this Scheme.

15. FILING OF APPLICATIONS

The Transferor Companies and the Transferee Company shall use their best efforts to make and file all applications and petitions under Sections 233 and other applicable provisions of the Act, before the Central Government, Regional Director, Eastern Region, Ministry Of Corporate Affairs having jurisdiction for sanction of this Scheme under the provisions of law, and shall apply for such approvals as may be required under law.

16. APPROVALS

The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to any Governmental Authority, If required, under any law for such consents and approvals with the Transferee Company may require to own the Undertaking and to carry on the business of the Transferor Companies.

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17. SCHEME CONDITIONAL UPON SANCTIONS, ETC.

17.1 This Scheme is conditional upon and subject to:

(i) The Scheme being agreed to by the requisite Majority of the respective classes of members of the Transferor Companies and of the Transferee Company as required under the Act and the requisite orders of the Central Government, Regional Director, Eastern Region, Ministry of Corporate Affairs being obtained; and

(ii) The requisite consents, approvals or permissions if any of the Government Authority or any other Statutory Agencies, which by law may be necessary for the implementation of this Scheme.

(iii) The authenticated/certified copies of the orders of the Central Government, Regional Director, Eastern Region, Ministry Of Corporate Affairs sanctioning this Scheme being filed with the concerned Registrar of Companies.

Accordingly, this Scheme although operative from the Appointed Date shall become effective on the Effective Date, being the last of the dates on which the conditions referred to above have been fulfilled.

17.2 In the event of this Scheme failing to take effect finally by December 31, 2026, or by such date as may be agreed by the respective Board of Directors of the Transferor Companies and the Transferee Company this Scheme shall become null and void and be of no effect and in that event no rights and liabilities

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whatsoever shall accrue to or be incurred or claimed Inter- se by the parties or their shareholders or creditors or employees or any other person. In such case, each company shall bear its own costs, charges and expenses or as may be mutually agreed.

18. COSTS, CHARGES, EXPENSES AND STAMP DUTY

All costs, charges and expenses (including any taxes and duties) incurred or payable by the Transferor Companies and the Transferee Company In relation to or In connection with this Scheme and Incidental to the completion of the amalgamation of the Transferor Companies with the Transferee Company in pursuance of this Scheme, including stamp duty on the orders of the Central Government, Regional Director, Eastern Region, Ministry Of Corporate Affairs, if any and to the extent applicable and payable, shall be paid by the Transferee Company.

19. MISCELLANEOUS

The Scheme does not contain or provide for any compromise with the creditors of the Transferee Company and the Transferor Companies, Further the Scheme has not been drawn to accommodate any corporate debt restructuring. The Scheme also does not come under the purview of the Competition Commission of India.

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